

## 26STCP02054 26STCP02054

County: los-angeles

Division: Civil Law and Motion

Department: 833

Hearing date: 2026-08-05

Source URL:

[https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept\\_date=LAM%2C833%2C08%2F05%2F2026](https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C833%2C08%2F05%2F2026)

Source SHA-256: 5504130844a4724579d1a5335059ce902c8a0e3bbcf57178efd0c7cbd4ace0fa

Case Number: 26STCP02054 Hearing Date: August 5, 2026 Dept: 833

Jane Doe Case No. 26STCP02054

Hearing:

August 5, 2026

v. Location: Stanley Mosk Courthouse

Department:

833

Harvey

Mudd College and Cindy Martinez Judge:

Joseph Lipner

Order Granting In Part Motion to Stay

Proceedings

Petitioner

Jane Doe ("Doe") moves for an order to stay the operation of the administrative action by Respondents Harvey Mudd College ("Harvey Mudd") and Cindy Martinez (collectively, "Respondents"), pending judicial review of her petition.

The

Court GRANTS the motion for stay in part. The administrative decision of Harvey Mudd is to be stayed pending the Court's ruling on the underlying petition for writ of mandate. During that time, Petitioner's grade will remain "incomplete" and Petitioner is no longer on Level 2 Probation. In all other respects, the Court DENIES the motion for stay.

The

Court also advances the trial setting conference, currently set for September 11, 2026, to today's date. The Court will discuss trial dates with the parties.

## LEGAL STANDARD

When parties file a writ under Code of Civil Procedure Section 1094.5, the court can stay the operation of an administrative order or decision pending the judgment of the court. (Code Civ. Proc., § 1094.5, subd. (g).) The Court need not make any determinations when granting a stay except to note that a stay is not against the public interest. (*Canyon Crest Conservancy v. County of Los Angeles* (2020) 46 Cal.App.5th 398, 407.)

## DISCUSSION

A.

Summary  
of Facts

Doe has completed her junior year at Harvey Mudd College. (Doe Decl., ¶¶ 4-5.)

Doe has been accused of cheating from two professors in the Physics Department at Harvey Mudd. (Doe Decl., ¶¶ 7-8.) The first accusation, concerning Professor Tamayo and the Theoretical Mechanics class, is the subject of the pending writ petition.

In Theoretical Mechanics, Doe aced her midterms, which were take-home, open book, and open-note exams. (Doe Decl., ¶¶ 9–10.) After the mid-term, Doe missed many classes at the end of the course and performed poorly on the final, which was also in-person, closed-book and closed-note. (Doe Decl. ¶¶ 12, 14–15.) Doe explains this discrepancy between her performance at the mid-term and her poor performance on the final as being caused by a traumatic life event: Doe made the choice to euthanize her lifelong pet who was dying from cancer. (Doe Decl. ¶¶ 11–13.)

Apparently in light of the discrepancy between the mid-term and the final, Professor Tamayo accused Doe of cheating on the midterms. He made the accusation on December 19, 2025. (Doe Decl. ¶¶ 16–17.)

After a hearing, the Honor Board concluded that there was not sufficient evidence that Doe used the internet or AI on the midterms. (Doe Decl. ¶ 28.) But the Honor Board still concluded that there was “clear and convincing” evidence that Doe used “some sort of nonallowed resource,” despite what Doe contends is evidence to the contrary. (Doe Decl., ¶ 28, Exh. 5, Exh. 8.) The Honor Board never identified what non-allowed resource Doe allegedly used. (Doe Decl. ¶ 30.) The Honor Board sanctioned Doe with a lower grade on the course and placed her on Probation Level 2, which means Doe may be suspended or expelled for any other Honor Code violation. (Doe Decl. ¶ 34.) When Doe appealed, the Appeals Board affirmed. (Doe Decl. ¶ 37.)

The second accusation (which is not a subject of the currently-pending petition) was from Professor Lynn in Doe’s Optics Lab course, PHYS 134. Professor Lynn grilled Doe in an hour-long oral examination of material from PHYS 134. (Doe Decl. ¶ 45.) Professor Lynn then emailed Doe afterwards claiming that Doe’s lab report “does not reflect your own work” and believed “this rises to a level of concern” after she “consulted” with her “co-instructors”—one of those co-instructors included Professor Gerbode, who graded Doe’s first midterm in Theoretical Mechanics. (Doe Decl. ¶ 47.) Professor Lynn filed a charge with the Honor Board claiming that Doe used “inappropriate resources” on her lab report. (Doe Decl. ¶ 52.) Professor Lynn made this accusation in April 2026, and the hearing on this accusation will occur in fall 2026. (Doe Decl. ¶ 54.)

Doe now moves to (1) stay the college’s disciplinary decision in Theoretical Mechanics and enter what she refers to as her original grade in that course; (2) stay any other disciplinary actions against Doe until her writ petition is resolved and enter grades in all completed courses; and (3) stay any administrative action that would prevent Doe from graduating and obtaining a degree from Harvey Mudd if judicial review of her writ petition is not completed before Doe completes all other required courses for her degree program.

B.

The

Court Grants a Stay of the Administrative Decision

The Court concludes that there is no harm to the public in granting a stay. The public has a strong interest in Doe completing her college education because “[e]ducation is vital and, indeed, basic to civilized society. It is an

interest of almost incalculable value, especially to those students who have already enrolled in the institution and begun the pursuit of their college training.” (Boormeester v. Carry (2023) 15 Cal. 5th 72, 89 (citation modified).) In academic discipline, “the controlling facts and the nature of the conduct under challenge are often disputed. The risk of error is not at all trivial, and it should be guarded against if that may be done without prohibitive cost or interference with the educational process.” (Goss v. Lopez I (1975) 419 U.S. 565, 580.)

“The goal of a stay is to preserve the status quo while a court determines the merits of the appeal.” (Daly v. San Bernardino County Bd. of Supervisors (2021) 11 Cal.5th 1030, 1051.) To maintain the status quo, a Court should try to set things to the “last actual peaceable, uncontested status which preceded the pending controversy.” (Id., at p. 1045.)

The hearing board’s decision should be stayed. The Court will review the administrative decision at trial. Doe (and the general public) have an interest in making sure that this decision was made properly and in accordance with the law. There is no reason that the administrative decision must take effect now.

This means that Harvey Mudd must return to the status quo before the issuance of the administrative decision that the Court is now reviewing. The parties dispute how this should be accomplished. Doe asserts that she should be temporarily given “her original grade.” Respondents argues that she should be given an incomplete—something that is already reflected on her record.

The Court agrees with Respondents. While this action is pending, Doe’s grade in Theoretical Mechanics will reflect an “incomplete.” Harvey Mudd must also remove any evidence of the administrative decision from Doe’s transcript or record—for all intents and purposes, with the issuance of this order, that decision is no longer “live”, at least until the Court has ruled on the underlying petition. Nor is Doe on probation while the administrative decision is stayed.

Doe argues that the Court should require Harvey Mudd to issue an actual letter grade, which she

refers to as her original grade. A key problem with this request is that there never has been such a grade. From what the Court can discern from the record, no grade was ever issued in Theoretical Mechanics, and staying the case allows the Court to preserve the status quo, not create a new reality where Doe has a particular grade. While Doe states that the Honor Board issued a sanction of a “one and one-third reduction of my overall course grade” (Doe Decl., ¶ 34), she does not assert that any grade was given.

Doe argues that Harvey

Mudd could add up her grades for various assignments and assign a letter grade based on that calculations. She cites *Doe v. University of California* (2018) 28 Cal.App.5th 26, 34 to show that a court has previously ordered relief of requiring a particular letter grade. The case she cites, however, arose in a very different procedural context. There, the superior court judge had ruled on the merits in petitioner’s favor and against the university. While the appeal was pending, the Court of Appeal issued an order “giving full effect to the superior court’s judgment during the appeal” and thus ordered the granting of a letter grade in accordance with the superior court’s decision. (Id. pp. 33-34.) This is far different than the current context, where the only ruling thus far has been against Doe, and this Court is merely staying that ruling and requiring adherence to the status quo before the ruling.

Moreover, at this

stage, the Court leaves to Harvey Mudd the traditional role of determining Doe’s grade, and prior to the decision in the administrative hearing, that was an incomplete. (See generally *Paulsen v. Golden Gate University* (1979) 25 Cal.3d 803, 808 [courts will not intervene in the academic affairs of schools unless the school acted arbitrarily or in bad faith]; *Lachtman v. Regents of University of California* (2007) 158 Cal.App.4th 187, 203 [explaining that university faculties must have the widest range of discretion in making judgments as to the academic performance of students].)

One of the reasons

Doe requests that the Court order Harvey Mudd to impose the grade she would have gotten had there not been a cheating allegation is because of the potential for irreparable harm. Doe explains that (1) she will suffer irreparable harm from submitting less competitive law school applications if she is forced to apply with an “incomplete” rather than a passing grade in Theoretical Mechanics, (2) she will suffer irreparable harm from being denied

the opportunity to graduate alongside her friends and classmates if her writ petition is still pending in May 2027, assuming she otherwise has fulfilled all requirements for graduation, and (3) she will suffer irreparable harm from being forced to endure another unlawful disciplinary proceeding related to Lab Optics that may result in her expulsion from the college because she was placed on Probation Level 2 during the Theoretical Mechanics proceeding. (Reply, 6:4-12.)

There are a few problems with this irreparable harm analysis. First, there is no requirement that Doe submit law school applications this year. Doe can submit law school applications in a future year and can seek employment immediately after college is complete. Second, as the Court noted above, the administrative decision is now stayed, and Doe is no longer on Probation Level 2. Third, the Court is sensitive to the concerns about timeline and will work with both parties to schedule trial as soon as possible.

C.

The

Court Does Not Stay Other Disciplinary Actions

Doe also asks the

Court to stay other pending disciplinary actions until her writ petition is resolved. The Court declines to do this. The other disciplinary action is not ripe for the Court to review, as a final administrative decision has not been issued, and Doe has not exhausted her administrative remedies in that decision. The issuance of the stay, however, means that Doe is not on Probation Level 2 until the Court has ruled on the underlying petition. Harvey Mudd must take this into account in determining how the other disciplinary action ends.

Finally, Doe asks

the Court to stay any administrative action that would prevent Doe from graduating and obtaining a degree at Harvey Mudd if judicial review of her writ petition is not completed before Doe completes all other required courses for her degree program. This is not an action that the Court has the ability to impose on these facts. It is also unrealistic – Harvey Mudd needs to have discretion to respond to events on their campus and it would make little sense to argue that one student is immune from a university's discretion to manage the student discipline process.

## CONCLUSION

The

Court GRANTS the motion for stay IN PART. The administrative decision of Harvey Mudd is to be stayed – meaning Doe’s grade will be listed as “incomplete” and Doe is no longer on Level 2 Probation pending the Court’s decision on the underlying petition for writ of mandate. In all other respects, the Court DENIES the motion for stay.

IT IS SO ORDERED.

Dated: August 5,  
2026

---

Joseph  
Lipner

Superior  
Court Judge